

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4431

By: Hilbert

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9 COMMITTEE SUBSTITUTE

10 An Act relating to professions and occupations;
11 amending 59 O.S. 2021, Section 353.1, as last amended
12 by Section 5, Chapter 340, O.S.L. 2025 (59 O.S. Supp.
13 2025, Section 353.1), which relates to definitions
14 within the Oklahoma Pharmacy Act; modifying
15 references; amending 59 O.S. 2021, Section 353.1a, as
16 amended by Section 6, Chapter 340, O.S.L. 2025 (59
17 O.S. Supp. 2025, Section 353.1a), which relates to
18 prescribing authority for Advanced Practice
19 Registered Nurse, Certified Nurse Practitioner,
20 Clinical Nurse Specialist, Certified Midwife;
21 modifying references; repealing 59 O.S. 2021, Section
22 353.1, as last amended by Section 1, Chapter 343,
23 O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1),
24 which relates to a duplicate section; repealing 59
 O.S. 2021, Section 353.1a, as amended by Section 2,
 Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025, Section
 353.1a), which relates to a duplicate section; and
 providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 59 O.S. 2021, Section 353.1, as last amended by Section 5, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025, Section 353.1), is amended to read as follows:

Section 353.1. For the purposes of the Oklahoma Pharmacy Act:

1. "Accredited program" means those seminars, classes, meetings, work projects, and other educational courses approved by the State Board of Pharmacy for purposes of continuing professional education;

2. "Act" means the Oklahoma Pharmacy Act;

3. "Administer" means the direct application of a drug, whether by injection, inhalation, ingestion, or any other means, to the body of a patient;

4. "Assistant pharmacist" means any person presently licensed as an assistant pharmacist in this state by the Board pursuant to Section 353.10 of this title and for the purposes of the Oklahoma Pharmacy Act shall be considered the same as a pharmacist, except where otherwise specified;

5. "Board" or "State Board" means the State Board of Pharmacy;

6. "Certify" or "certification of a prescription" means the review of a filled prescription by a licensed pharmacist or a licensed practitioner with dispensing authority to confirm that the medication, labeling, and packaging of the filled prescription are accurate and meet all requirements prescribed by state and federal

1 law. For the purposes of this paragraph, "licensed practitioner"
2 shall not include optometrists with dispensing authority;

3 7. "Chemical" means any medicinal substance, whether simple or
4 compound or obtained through the process of the science and art of
5 chemistry, whether of organic or inorganic origin;

6 8. "Compounding" means the combining, admixing, mixing,
7 diluting, pooling, reconstituting, or otherwise altering of a drug
8 or bulk drug substance to create a drug. Compounding includes the
9 preparation of drugs or devices in anticipation of prescription drug
10 orders based on routine, regularly observed prescribing patterns;

11 9. "Continuing professional education" means professional,
12 pharmaceutical education in the general areas of the socioeconomic
13 and legal aspects of health care; the properties and actions of
14 drugs and dosage forms; and the etiology, characteristics, and
15 therapeutics of the diseased state;

16 10. "Dangerous drug", "legend drug", "prescription drug", or
17 "Rx Only" means a drug:

18 a. for human use subject to 21 U.S.C., Section 353(b)(1),
19 or

20 b. is labeled "Prescription Only", or labeled with the
21 following statement: "Caution: Federal law restricts
22 this drug to use by or on the order of a licensed
23 veterinarian.";

1 11. "Director" means the Executive Director of the State Board
2 of Pharmacy unless context clearly indicates otherwise;

3 12. "Dispense" or "dispensing" means the interpretation,
4 evaluation, and implementation of a prescription drug order
5 including the preparation and delivery of a drug or device to a
6 patient or a patient's agent in a suitable container appropriately
7 labeled for subsequent administration to, or use by, a patient.
8 Dispense includes sell, distribute, leave with, give away, dispose
9 of, deliver, or supply;

10 13. "Dispenser" means a retail pharmacy, hospital pharmacy, a
11 group of chain pharmacies under common ownership and control that do
12 not act as a wholesale distributor, or any other person authorized
13 by law to dispense or administer prescription drugs, and the
14 affiliated warehouses or distributions of such entities under common
15 ownership and control that do not act as a wholesale distributor.
16 For the purposes of this paragraph, dispenser does not mean a person
17 who dispenses only products to be used in animals in accordance with
18 21 U.S.C., Section 360b(a) (5);

19 14. "Distribute" or "distribution" means the sale, purchase,
20 trade, delivery, handling, storage, or receipt of a product, and
21 does not include the dispensing of a product pursuant to a
22 prescription executed in accordance with 21 U.S.C., Section
23 353(b) (1) or the dispensing of a product approved under 21 U.S.C.,
24

1 Section 360b(b); provided, taking actual physical possession of a
2 product or title shall not be required;

3 15. "Doctor of Pharmacy" means a person licensed by the Board
4 to engage in the practice of pharmacy. The terms "pharmacist",
5 "D.Ph.", and "Doctor of Pharmacy" shall be interchangeable and shall
6 have the same meaning wherever they appear in the Oklahoma Statutes
7 and the rules promulgated by the Board;

8 16. "Drug outlet" means all manufacturers, repackagers,
9 outsourcing facilities, wholesale distributors, third-party
10 logistics providers, pharmacies, and all other facilities which are
11 engaged in dispensing, delivery, distribution, or storage of
12 dangerous drugs;

13 17. "Drugs" means all medicinal substances and preparations
14 recognized by the United States Pharmacopeia and National Formulary,
15 or any revision thereof, and all substances and preparations
16 intended for external and/or internal use in the cure, diagnosis,
17 mitigation, treatment, or prevention of disease in humans or animals
18 and all substances and preparations, other than food, intended to
19 affect the structure or any function of the body of a human or
20 animals;

21 18. "Drug sample" means a unit of a prescription drug packaged
22 under the authority and responsibility of the manufacturer that is
23 not intended to be sold and is intended to promote the sale of the
24 drug;

1 19. "Durable medical equipment" has the same meaning as
2 provided by Section 375.2 of this title;

3 20. "Filled prescription" means a packaged prescription
4 medication to which a label has been affixed which contains such
5 information as is required by the Oklahoma Pharmacy Act;

6 21. "Hospital" means any institution licensed as a hospital by
7 this state for the care and treatment of patients, or a pharmacy
8 operated by the Oklahoma Department of Veterans Affairs;

9 22. "Licensed practitioner" means:

- 10 a. an allopathic physician,
- 11 b. an osteopathic physician,
- 12 c. a podiatric physician,
- 13 d. a dentist,
- 14 e. a veterinarian,
- 15 f. an optometrist, ~~or~~
- 16 g. an Advanced Practice Registered Nurse, or
- 17 h. a physician assistant

18 licensed to practice and authorized to prescribe dangerous drugs
19 within the scope of practice of such practitioner;

20 23. "Manufacturer" or "virtual manufacturer" means with respect
21 to a product:

- 22 a. a person that holds an application approved under 21
23 U.S.C., Section 355 or a license issued under 42
24 U.S.C., Section 262 for such product, or if such

- 1 product is not the subject of an approved application
2 or license, the person who manufactured the product,
3 b. a co-licensed partner of the person described in
4 subparagraph a of this paragraph that obtains the
5 product directly from a person described in this
6 subparagraph or subparagraph a of this paragraph,
7 c. an affiliate of a person described in subparagraph a
8 or b of this paragraph who receives the product
9 directly from a person described in this subparagraph
10 or in subparagraph a or b of this paragraph, or
11 d. a person who contracts with another to manufacture a
12 product;

13 24. "Manufacturing" means the production, preparation,
14 propagation, compounding, conversion, or processing of a device or a
15 drug, either directly or indirectly by extraction from substances of
16 natural origin or independently by means of chemical or biological
17 synthesis and includes any packaging or repackaging of the
18 substances or labeling or relabeling of its container, and the
19 promotion and marketing of such drugs or devices. The term
20 manufacturing also includes the preparation and promotion of
21 commercially available products from bulk compounds for resale by
22 licensed pharmacies, licensed practitioners, or other persons;
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24

1 25. "Medical gas" means those gases including those in liquid
2 state upon which the manufacturer or distributor has placed one of
3 several cautions, such as "Rx Only", in compliance with federal law;

4 26. "Medical gas order" means an order for medical gas issued
5 by a licensed prescriber;

6 27. "Medical gas distributor" means a person licensed to
7 distribute, transfer, wholesale, deliver, or sell medical gases on
8 drug orders to suppliers or other entities licensed to use,
9 administer, or distribute medical gas and may also include a patient
10 or ultimate user;

11 28. "Medical gas supplier" means a person who dispenses medical
12 gases on drug orders only to a patient or ultimate user;

13 29. "Medicine" means any drug or combination of drugs which has
14 the property of curing, preventing, treating, diagnosing, or
15 mitigating diseases, or which is used for that purpose;

16 30. "Nonprescription drugs" means medicines or drugs which are
17 sold without a prescription and which are prepackaged for use by the
18 consumer and labeled in accordance with the requirements of the
19 statutes and regulations of this state and the federal government.
20 Such items shall also include medical and dental supplies and
21 bottled or nonbulk chemicals which are sold or offered for sale to
22 the general public if such articles or preparations meet the
23 requirements of the Federal Food, Drug, and Cosmetic Act, 21
24 U.S.C.A., Section 321 et seq.;

1 31. "Outsourcing facility" including "virtual outsourcing
2 facility" means a facility at one geographic location or address
3 that:

- 4 a. is engaged in the compounding of sterile drugs,
- 5 b. has elected to register as an outsourcing facility,
- 6 and
- 7 c. complies with all requirements of 21 U.S.C., Section
8 353b;

9 32. "Package" means the smallest individual saleable unit of
10 product for distribution by a manufacturer or repackager that is
11 intended by the manufacturer for ultimate sale to the dispenser of
12 such product. For the purposes of this paragraph, "individual
13 saleable unit" means the smallest container of a product introduced
14 into commerce by the manufacturer or repackager that is intended by
15 the manufacturer or repackager for individual sale to a dispenser;

16 33. "Person" means an individual, partnership, limited
17 liability company, corporation, or association, unless the context
18 otherwise requires;

19 34. "Pharmacist-in-charge" or "PIC" means the pharmacist
20 licensed in this state responsible for the management control of a
21 pharmacy and all other aspects of the practice of pharmacy in a
22 licensed pharmacy as provided by Section 353.18 of this title;

23 35. "Pharmacy" means a place regularly licensed by the State
24 Board of Pharmacy in which prescriptions, drugs, medicines,

1 chemicals, and poisons are compounded or dispensed or such place
2 where pharmacists practice the profession of pharmacy, or a pharmacy
3 operated by the Oklahoma Department of Veterans Affairs;

4 36. "Pharmacy technician", "technician", "Rx tech", or "tech"
5 means a person issued a technician permit by the State Board of
6 Pharmacy to assist the pharmacist and perform nonjudgmental,
7 technical, manipulative, non-discretionary functions in the
8 prescription department under the immediate and direct supervision
9 of a pharmacist;

10 37. "Poison" means any substance which when introduced into the
11 body, either directly or by absorption, produces violent, morbid, or
12 fatal changes, or which destroys living tissue with which such
13 substance comes into contact;

14 38. "Practice of pharmacy" means:

- 15 a. the interpretation and evaluation of prescription
16 orders,
- 17 b. the compounding, dispensing, administering, and
18 labeling of drugs and devices, except labeling by a
19 manufacturer, repackager, or distributor of
20 nonprescription drugs and commercially packaged legend
21 drugs and devices,
- 22 c. the participation in drug selection and drug
23 utilization reviews,

- 1 d. the proper and safe storage of drugs and devices and
2 the maintenance of proper records thereof,
3 e. the responsibility for advising by counseling and
4 providing information, where professionally necessary
5 or where regulated, of therapeutic values, content,
6 hazards, and use of drugs and devices,
7 f. the offering or performing of those acts, services,
8 operations, or transactions necessary in the conduct,
9 operation, management, and control of a pharmacy, or
10 g. the provision of those acts or services that are
11 necessary to provide pharmaceutical care;

12 39. "Preparation" means an article which may or may not contain
13 sterile products compounded in a licensed pharmacy pursuant to the
14 order of a licensed prescriber;

15 40. "Prescriber" means a person licensed in this state who is
16 authorized to prescribe dangerous drugs within the scope of practice
17 of the person's profession;

18 41. "Prescription" means and includes any order for drug or
19 medical supplies written or signed, or transmitted by word of mouth,
20 telephone, or other means of communication:

- 21 a. by a licensed prescriber, including:

22 (1) a Certified Nurse Practitioner, Clinical Nurse
23 Specialist, or Certified Nurse-Midwife licensed
24 in the state who has obtained independent

1 prescriptive authority under Section 567.4c of
2 Title 59 of the Oklahoma Statutes, and

3 (2) a physician assistant entitled to practice
4 without the supervision of a delegating physician
5 under Section 519.6 of Title 59 of the Oklahoma
6 Statutes;

7 b. by a physician assistant pursuant to a practice
8 agreement,

9 c. ~~(1) under the supervision of a supervising physician,~~
10 by a Certified Nurse Practitioner, Clinical Nurse
11 Specialist, or Certified Nurse-Midwife licensed
12 in this state who has not obtained independent
13 prescriptive authority under ~~Section 1 of this~~
14 ~~act~~ Section 567.4c of Title 59 of the Oklahoma
15 Statutes under the supervision of a supervising
16 physician, or

17 ~~(2) by a Certified Nurse Practitioner, Clinical Nurse~~
18 ~~Specialist, or Certified Nurse-Midwife licensed~~
19 ~~in this state who has obtained independent~~
20 ~~prescriptive authority under Section 1 of this~~
21 ~~act, or~~

22 d. by an Oklahoma licensed wholesaler or distributor as
23 authorized in Section 353.29.1 of this title;

1 42. "Product" means a prescription drug in a finished dosage
2 form for administration to a patient without substantial further
3 manufacturing, such as capsules, tablets, and lyophilized products
4 before reconstitution. Product does not include blood components
5 intended for transfusion, radioactive drugs or biologics and medical
6 gas;

7 43. "Repackager", including "virtual repackager", means a
8 person who owns or operates an establishment that repacks and
9 relabels a product or package for further sale or distribution
10 without further transaction;

11 44. "Sterile drug" means a drug that is intended for parenteral
12 administration, an ophthalmic or oral inhalation drug in aqueous
13 format, or a drug that is required to be sterile under state and
14 federal law;

15 45. "Supervising physician" means an individual holding a
16 current license to practice as a physician from the State Board of
17 Medical Licensure and Supervision, pursuant to the provisions of the
18 Oklahoma Allopathic Medical and Surgical Licensure and Supervision
19 Act, or the State Board of Osteopathic Examiners, pursuant to the
20 provisions of the Oklahoma Osteopathic Medicine Act, who supervises
21 a Certified Nurse Practitioner, Clinical Nurse Specialist, or
22 Certified Nurse-Midwife as defined in Section 567.3a of this title
23 who has not obtained independent prescriptive authority under
24 ~~Section 1 of this act~~ 567.4c of this title, and who is not in

1 training as an intern, resident, or fellow. The supervising
2 physician shall remain in compliance with the rules promulgated by
3 the State Board of Medical Licensure and Supervision or the State
4 Board of Osteopathic Examiners;

5 46. "Supportive personnel" means technicians and auxiliary
6 supportive persons who are regularly paid employees of a pharmacy
7 who work and perform tasks in the pharmacy as authorized by Section
8 353.18A of this title;

9 47. "Third-party logistics provider" including "virtual third-
10 party logistics provider" means an entity that provides or
11 coordinates warehousing, or other logistics services of a product in
12 interstate commerce on behalf of a manufacturer, wholesale
13 distributor, or dispenser of a product but does not take ownership
14 of the product, nor have responsibility to direct the sale or
15 disposition of the product. For the purposes of this paragraph,
16 third-party logistics provider does not include shippers and the
17 United States Postal Service;

18 48. "Wholesale distributor" including "virtual wholesale
19 distributor" means a person other than a manufacturer, a
20 manufacturer's co-licensed partner, a third-party logistics
21 provider, or repackager engaged in wholesale distribution as defined
22 by 21 U.S.C., Section 353(e)(4) as amended by the Drug Supply Chain
23 Security Act;

1 49. "County jail" means a facility operated by a county for the
2 physical detention and correction of persons charged with, or
3 convicted of, criminal offenses or ordinance violations or persons
4 found guilty of civil or criminal contempt;

5 50. "State correctional facility" means a facility or
6 institution that houses a prisoner population under the jurisdiction
7 of the Department of Corrections;

8 51. "Unit dose package" means a package that contains a single
9 dose drug with the name, strength, control number, and expiration
10 date of that drug on the label; and

11 52. "Unit of issue package" means a package that provides
12 multiple doses of the same drug, but each drug is individually
13 separated and includes the name, lot number, and expiration date.

14 SECTION 2. AMENDATORY 59 O.S. 2021, Section 353.1a, as
15 amended by Section 6, Chapter 340, O.S.L. 2025 (59 O.S. Supp. 2025,
16 Section 353.1a), is amended to read as follows:

17 Section 353.1a. A. Prescriptive authority for certain licensed
18 Advanced Practice Registered Nurses:

19 1. Prescriptive authority shall be allowed, under a current
20 supervision agreement with a supervising physician, for a licensed
21 Advanced Practice Registered Nurse recognized by the Oklahoma Board
22 of Nursing as a Certified Nurse Practitioner, Clinical Nurse
23 Specialist, or Certified Nurse-Midwife who has not obtained
24

1 independent prescriptive authority ~~under Section 1 of this act.~~

2 pursuant to Section 567.4c of Title 59 of the Oklahoma Statutes; and

3 2. Prescriptive authority shall be allowed, independent of a
4 current supervision agreement with a supervising physician, for a
5 licensed Advanced Practice Registered Nurse recognized by the
6 Oklahoma Board of Nursing as a Certified Nurse Practitioner,
7 Clinical Nurse Specialist, or Certified Nurse-Midwife who has
8 obtained independent prescriptive authority ~~under Section 1 of this~~
9 ~~act~~ pursuant to Section 567.4c of Title 59 of the Oklahoma Statutes.

10 B. Prescriptive authority for physician assistants:

11 1. Prescriptive authority shall be allowed, pursuant to a
12 practice agreement, for a physician assistant required to practice
13 under supervision of a delegating physician; and

14 2. Prescriptive authority shall be allowed for a physician
15 assistant not required to practice under supervision of a delegating
16 physician.

17 C. ~~The~~ An Advanced Practice Registered Nurse may write or sign,
18 or transmit by word of mouth, telephone, or other means of
19 communication an order for drugs or medical supplies that is
20 intended to be filled, compounded, or dispensed by a pharmacist.
21 The supervising physician, if applicable, and the prescribing
22 Advanced Practice Registered Nurse shall be identified at the time
23 of origination of the prescription and the name of the prescribing
24

1 Advanced Practice Registered Nurse shall be printed on the
2 prescription label.

3 ~~C.~~ D. Pharmacists may dispense prescriptions for non-controlled
4 prescription drugs authorized by an Advanced Practice Registered
5 Nurse or physician assistant, not located in this state, provided
6 that they are licensed in the state in which they are actively
7 prescribing.

8 ~~D.—1.~~ E. Pharmacists may only dispense prescriptions for
9 controlled dangerous substances prescribed by:

10 1. an An Advanced Practice Registered Nurse licensed in this
11 state who meets the criteria in paragraph 1 or 2 of subsection A of
12 this section.

13 2. Pharmacists may only dispense prescriptions for controlled
14 dangerous substances prescribed by a A physician assistant licensed
15 in this state pursuant to a practice agreement.

16 F. Pharmacies and pharmacists may rely on the Board of Medical
17 Licensure and Supervision list of physician assistants who have
18 reported completion of six thousand two hundred forty (6,240) or
19 more postgraduate clinical experience hours and are thus entitled to
20 prescribe without a practice agreement.

21 SECTION 3. REPEALER 59 O.S. 2021, Section 353.1, as last
22 amended by Section 1, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025,
23 Section 353.1), is hereby repealed.

1 SECTION 4. REPEALER 59 O.S. 2021, Section 353.1a, as
2 amended by Section 2, Chapter 343, O.S.L. 2025 (59 O.S. Supp. 2025,
3 Section 353.1a), is hereby repealed.

4 SECTION 5. This act shall become effective November 1, 2026.

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6 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES
7 OVERSIGHT, dated 03/05/2026 - DO PASS, As Amended.
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